

Gyan Prakash Gupta v. Madhyanchal Vidyut Vitran Nigam Ltd. & 4 Others

Allahabad High Court, Lucknow Bench · Division Bench · 12 January 2026 · Writ - C No. 8177 of 2025 · **Counter directed; last listed 27.01.2026, not within top ten.**

HEADNOTE

After an earlier writ had already sent the consumer to a Rule 6.5 objection, which the Executive Engineer rejected citing long-standing refusal of meter access and IDF billing, a fresh writ seeking to quash the 06.07.2022 bill and restore the 13.09.2022 disconnection was kept pending. Counter affidavit was directed on 28.08.2025; time was later extended on a peremptory basis; the petition was then listed from date to date. On 12.01.2026 none appeared for the petitioner and the matter was listed for 27.01.2026, not within top ten. The bill, restoration, service of the 23.01.2024 order, and the 6.5 rejection were not decided.

FACTUAL SUMMARY

Gyan Prakash Gupta sued Madhyanchal Vidyut Vitran Nigam Ltd. at the Lucknow Bench (Writ-C No. 8177 of 2025) to quash an electricity bill dated 06.07.2022, restore a connection disconnected on 13.09.2022, obtain a speaking computation of his 23.12.2023 representation, and have a fresh bill after One Time Settlement credit for dues up to 30.09.2021.

An earlier petition, Writ-C No. 11150 of 2023, had been disposed on 19.12.2023 directing him to object under Rule 6.5 of the Electricity Supply Code and the Executive Engineer to decide within four weeks. The EE rejected that representation on 23.01.2024, recording that since 2012 the petitioner had not allowed MVVNL staff to inspect the meter, bills were generated under category "IDF", and the dispute could not be resolved without an actual reading. The petitioner said the rejection was not shown to have been delivered for want of a postal tracking report.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing after 6.5 rejection — counter and adjournments

HOLDING

The Court did not decide the 06.07.2022 bill, the 13.09.2022 disconnection, or the 23.01.2024 Executive Engineer order on the Rule 6.5 representation. On 28.08.2025 a Division Bench (Sangeeta Chandra and Brij Raj Singh JJ.) directed a counter affidavit within four weeks and listed the writ. Time for the counter was extended on 12.11.2025 on a peremptory basis. Later orders listed the matter from date to date. On 12.01.2026 none appeared for the petitioner; it was listed for 27.01.2026 and was not to be listed within top ten. ¶ 5-6

FLAG Thin interlocutory bundle of five orders (28.08.2025, 12.11.2025, 12.12.2025, 17.12.2025, 12.01.2026). Paras 5-6 are of the 28.08.2025 order. No construction of Clause 6.5.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 06.07.2022 IS EXCESSIVE OR ARBITRARY, AND WHETHER THE CONNECTION DISCONNECTED ON 13.09.2022 SHOULD BE RESTORED

Prayers (i) and (ii); only a counter affidavit and listings. ¶ 2, 5-6

NOT DECIDED — WHETHER THE 23.01.2024 EXECUTIVE ENGINEER ORDER ON THE RULE 6.5 REPRESENTATION WAS SERVED AND IS SUSTAINABLE, INCLUDING THE IDF BILLING AND ALLEGED REFUSAL OF METER ACCESS SINCE 2012

Recited from the licensee's production of the rejection; petitioner disputed delivery for want of a tracking report. Not decided. ¶ 3-4

Prayer (iv); not reached. ¶ 2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.